Syllabus

McCARTHY, SUPERINTENDENT, ELMIRA CORRECTIONAL FACILITY *v.* HERNANDEZ

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 25–748. Decided June 22, 2026

In 2017, a New York jury found Pedro Hernandez guilty of kidnapping and murdering 6-year-old Etan Patz decades earlier. At issue during the trial, on direct appeal, and on habeas review were the trial court's jury instructions concerning various confessions to the crime by Hernandez. When detectives first questioned Hernandez about the crime at the Camden County Prosecutor's Office (CCPO), they did so without first administering a *Miranda* warning, see *Miranda* v. *Arizona*, 384 U. S. 436, and Hernandez, a man with a low IQ and a history of mental illness, eventually confessed to strangling Patz and dumping his body. The detectives then read Hernandez his *Miranda* rights, and he waived those rights and made a second, videotaped confession. Hernandez later gave another videotaped confession to an assistant district attorney in New York, and he continued to confess to Patz's murder to his family, his psychiatrist, and others. At trial, the trial court denied Hernandez's motion to suppress his statements to the detectives and the assistant district attorney. The court ruled that Hernandez was not in custody at the CCPO before he received his *Miranda* warning and that he had knowingly and voluntarily waived his *Miranda* rights before he made his later videotaped confessions. Under New York law, however, the trial court's decision not to suppress those confessions did not prevent the defense from asking the jury to disregard them. During jury deliberations, the jury sent the trial court a note asking whether, *if* the jury found that the initial confession at CCPO before the *Miranda* rights was not voluntary, the jury must disregard the two later videotaped confessions and the confessions to others. The trial judge advised the jury that the answer to its question was "no." App. to Pet. for Cert. 307a. In an exchange with counsel outside the presence of the jury, the trial court explained that although New York law requires a jury to disregard confessions that it finds were "involuntarily made," state law does not empower a jury to assess whether a later confession is fatally tainted by an earlier, "involuntary" confession. So the trial court did not think it proper to "instruc[t]" the jury "on attenuation" when it was "not their function" to consider that issue. *Id.*, at 301a–302a. New York's intermediate appellate court (the Appellate Division,

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First Department) affirmed. The appellate court ruled that the trial judge had responded to the jury note in accord with state law. *People* v. *Hernandez*, 181 App. Div. 3d 530, 532–533, 122 N. Y. S. 3d 11, 14–15. And it concluded that the verdict would have been the same even if the trial judge had instructed the jury on attenuation. The New York Court of Appeals denied leave to appeal, and this Court denied certiorari.

Hernandez next filed an application for a writ of habeas corpus in Federal District Court. The Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA) imposes strict limits on federal courts' power to grant habeas relief to a prisoner convicted in state court. As relevant here, a federal court may grant habeas relief on a claim that a state court has resolved on the merits only if that decision was "contrary to, or involved an unreasonable application of, clearly established Federal law." 28 U. S. C. § 2254(d)(1). Hernandez argued that the Appellate Division had violated clearly established federal law in rejecting his *Miranda* arguments and in its ruling on the trial court's response to the jury note. That response, Hernandez maintained, itself violated clearly established federal law by failing to explain to the jury the rule that Justice Kennedy adopted in his opinion concurring in the judgment in *Missouri* v. *Seibert*, 542 U. S. 600. *Seibert* addressed the constitutionality of an interrogation tactic under which police question a suspect in custody without providing a *Miranda* warning and then, after eliciting a confession, provide a *Miranda* warning and ask the suspect to repeat the confession. The Court ruled that the use of this tactic in that case violated federal law. The District Court denied Hernandez's habeas application, but a panel of the Second Circuit reversed, *Hernandez* v. *McIntosh*, 146 F. 4th 142, finding the trial court's answer to the jury's question to be "manifestly inaccurate." *Id.*, at 159. In the panel's view, that error warranted habeas relief under § 2254(d)(1) because the response was contrary to and involved an unreasonable application of *Seibert*. 146 F. 4th, at 159–160.

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Held: The Second Circuit exceeded its authority in holding that Hernandez is entitled to habeas relief under 28 U. S. C. § 2254(d)(1); no clearly established federal law required the trial court to instruct the jury about the rule that Justice Kennedy adopted in *Missouri* v. *Seibert*, 542 U. S. 600, and the Second Circuit erred in holding otherwise. The Appellate Division's decision neither contravened nor unreasonably applied any holding of this Court.

New York law requires a trial court to instruct a jury to disregard a pretrial statement if the jury finds it to have been "involuntarily made." N. Y. Crim. Proc. Law Ann. § 710.70(3). But New York law does not